Manoj Kanyal vs Govt. Of Nct Delhi on 16 November, 2022

Author: Purushaindra Kumar Kaurav

Bench: Purushaindra Kumar Kaurav

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 2795/2022
MANOJ KANYAL ...
Through: Mr. Sanjay Kumar, Advocate

Versus

GOVT. OF NCT DELHI ...
Through: Mr. Amit Ahlawat, APP for S
SI Ravi Poonia, P.S. Dayalpur
Mr. Salim Malik, Advocate for Compla
CORAM:
HON'BLE MR. JUSTICE PURUSHAINDRA KUMAR KAURAV
ORDER

% 16.11.2022

1. The present bail application has been filed under Section 438 of Cr.P.C. on behalf of the applicant seeking anticipatory bail in FIR No. 365/2022 under Sections 420/467/468/471/506/120B of the IPC registered at Police Station Dayalpur, Delhi.

2. Learned counsel appearing on behalf of the applicant submits that the main conspirator, Bhuvan Chand, who is the real brother of the applicant, has already been taken into custody and there is no specific role attributed to the present applicant for the commission of instant crime. While referring to the reply, given by the complainant to the notice issued to him by Bhuvan Chand, he submits that even according to the complainant also there is no specific role led by the present applicant. While referring to the Status Report, he points out that there is no video clipping which shows the complicity of the present applicant and he has been unnecessarily made accused in the instant case. With respect to the part possession of the property in question, he submits that even the mother of the present applicant has filed an application under Section 156(3) of Cr.P.C. against the complainant for registering offence for house trespass and encroaching her property. He further submits that in terms of order dated 19.09.2022, the applicant appeared before the concerned Investigating Officer and has furnished relevant information and, therefore, his custodial interrogation is not required. He further points out that neither the applicant has forged any document nor he was part of the conspiracy, if at all hatched by the main accused of the instant FIR. Learned counsel for the applicant, on instructions, undertakes to cooperate with the investigation as and when he is called for.

3. Learned APP for the State and learned counsel for the complainant strongly opposed the instant bail application and submit that the evidence collected so far would clearly indicate the involvement of the present applicant, he has been seen in the photograph counting the money. They further submit that a part of the cheated money has been received by the present applicant and the present applicant tried to usurp the property, which actually was belonging to his mother and with an intend to cheat innocent complainant, the instant offence has been committed by the present applicant in connivance with the main accused, Bhuvan Chand.

4. I have heard learned counsel for the parties and perused the record.

5. The case of the prosecution would show that the complaint dated 16.12.2021 was filed by Mohd. Wasim regarding fraud of money amounting to Rs.45,00,000/- on the pretext of sale of property bearing No. C-10/442 Gali No. 10, Brijpuri, Delhi, measuring 80 Gaj. It is seen that in the said complaint the main allegations were against Bhuvan Chand and the present applicant was stated to be conspirators. After initial interaction, the property in question was shown by main accused Bhuvan Chand and the chain of original documents was also presented by main accused Bhuvan Chand to complainant Mohd. Wasim. It is further seen that the agreement to sell dated 08.11.2021 was executed between the complainant-Mohd. Wasim and Bhuvan Chand. There is no signature of the present applicant in the agreement to sell.

6. Having considered the submissions made by learned counsel for the parties and on perusal of the record, it is further seen that the applicant did appear before the concerned Investigating Officer on 06.11.2022 and on 09.11.2022. The submissions made by learned APP for the State that the present applicant remained non-cooperative does not seem to be correct as the questionnaire (a) to (g) put to the present applicant does not relate to any information which applicant can be expected to furnish to the concerned Investigating Officer. Under the pretext of cooperation, the accused cannot be expected to furnish evidence against himself. The investigation of the instant case can still be carried out without taking the present applicant into custody as the facts of the present case does not indicate necessity of custodial interrogation of the applicant. Moreso, the main accused Bhuvan Chand has already been arrested.

7. Without making any observations with respect to the merits of the case, this court finds it appropriate to enlarge the applicant on anticipatory bail subject to his furnishing a personal bond in the sum of 15,000/- with one surety in the like amount to the satisfaction of the Arresting Officer/Investigating Officer/SHO of the concerned Police Station and also subject to the further following conditions:-

(i) The applicant shall join and cooperate with the investigation as and when he is directed to do s

(ii) The applicant shall not directly or indirectly t

touch with the complainant or any other prosecution witnesses or tamper with the evidence.

(iii) In case of change of residential address/contact details, the applicant shall promptly inform the same to the concerned Investigating Officer/SHO.

(iv) The applicant shall abide by the conditions under Section 437(3) of Cr.P.C.

8. The bail application is disposed of in the above terms.

PURUSHAINDRA KUMAR KAURAV, J NOVEMBER 16, 2022 p'ma